

PART 4 - RESIDENCE RULES

Student One - Residence Rules

Subject to the *Residential Tenancies and Rooming Accommodation Act 2008* (Qld) ("the **Act**"), the Residence Rules ("the **Rules**") for the student accommodation facilities located at **363 Adelaide Street Brisbane**, **38 Wharf Street Brisbane** and **97 Elizabeth Street Brisbane** ("the **Accommodation**") are as set out below.

1. Residents' and guests' behaviour

- a) Residents and their guests must not interfere with the reasonable peace, comfort or privacy of other residents.
- b) Residents must ensure their guests register with Student One prior to proceeding into any area of Student One, including all common areas and accommodation spaces.
- c) Physical assault of a person or person/s occurring within a Student One Residence, either in an apartment or a common space, is considered a serious breach and may, at Student One's discretion, result in the resident(s) being given a notice to leave the Accommodation immediately.
- d) Residents must not engage in any form of discrimination, bullying, intimidation and/or harassment of any kind including, without limitation, by online means such as email or via social networking sites. A breach of this Rule 1(d) is a serious breach and may, at Student One's discretion, result in the resident(s) being given a notice to leave the Accommodation immediately.
- e) Residents and their guests must leave common areas in their apartment and the Accommodation clean and tidy after using them.
- f) Residents must not throw, propel, or drop items from terraces, balconies, or open windows. Should any resident or guest be found not complying with this rule it will be deemed a serious breach of the resident's residential agreement and will be dealt with accordingly.

2. Maintenance

- a) Residents must maintain their room/apartment:
 - (i) in a way that does not interfere with the reasonable comfort of other residents; and
 - (ii) in a condition that does not create a fire or health hazard.
- b) Residents must not intentionally or recklessly damage or destroy any part of their room/apartment or a facility in their room/apartment. Without limitation, a breach of this Rule 2(b) is a serious breach and may, at Student One's discretion, result in the resident(s) being given a notice to leave the Accommodation immediately.
- c) Any requests for maintenance/repairs are required to be submitted via the "maintenance e request portal" at www.studentone.com. Maintenance requests are processed by Student One Monday to Friday during business hours.
- d) The resident agrees to share the cost of remedying damage to any item in an apartment common area equally between the residents of the relevant apartment, unless Student One decides that a specific resident(s) or resident(s)' guest is responsible for the damage, in which case the resident(s) determined responsible will be charged for the damage. The resident accepts that Student One will have sole discretion, acting reasonably, in determining who is responsible for the damage.
- e) Residents are not permitted to repair or replace electrical, plumbing, heating, security equipment, glass, or any other item in the Accommodation regardless of their expertise or experience in doing so.
- f) Residents are not permitted to use any electrical appliance other than those supplied by Student One in their accommodation unless approved prior to use by Student One. This includes, but is not limited to, clothes dryers, bar fridges, washing machines, gas cooktops, bar heaters and portable air conditioners.

3. Cleaning and Garbage Disposal

- a) Residents are required (this may include the Residents agreeing a roster for cleaning) to keep the common areas of their apartment in a reasonable state of cleanliness, including to:
 - (i) clean and vacuum on a regular basis;
 - (ii) maintain the area in a hygienic manner;
 - (iii) remove rubbish from the apartment on a daily basis;
 - (iv) clean internal windows and walls;
 - (v) clean and keep clean all appliances and cabinetry surfaces;
 - (vi) clean and keep clean the internal areas of, and the external surfaces beside, beneath and surrounding the cook top, range hood, oven (if applicable), microwave and refrigerator equipment; and
 - (vii) comply with any reasonable direction of Student One in this regard.
- b) Residents must supply their own cleaning materials and equipment where not otherwise supplied by Student One.
- c) Should the common areas of an apartment not be cleaned regularly or be in a state considered by Student One to be unhygienic, the resident(s) of that apartment will be issued notice to thoroughly clean the common areas of the apartment. If the residents do not arrange for the cleaning of the common areas of the apartment within 1 day, or an alternative time period to be specified in the notice, Student One may arrange for the common areas of the apartment to be professionally cleaned at the expense of the residents of the apartment.
- d) Garbage chutes, located on each accommodation level are available for residents to dispose of general garbage. Residents must comply with instructions in the garbage areas in relation to disposal of garbage and are responsible for ensuring all recycling is placed in the appropriate chute or recycling bins provided.
- e) In the interest of hygiene and aesthetics, residents must not place garbage adjacent to or on top of garbage bins. Residents must not leave garbage outside their rooms/apartments. Residents must not dispose of garbage or throw any item over or from balconies, terraces or open windows. Any Resident found not complying with these procedures may be charged with the cost of cleaning, removing and/or disposing of the garbage, at the discretion of Student One.

4. Safety and Security

- a) To ensure the Accommodation remains safe and secure, residents and their guests should undertake the following:
 - (i) ensure that their room/apartment door closes and locks behind them when they enter or leave;
 - (ii) ensure that building external doors are closed after exiting at all times;
 - (iii) refrain from propping open doors for any means;
 - (iv) refrain from granting access to the Accommodation to anyone not known to a resident;
 - (v) familiarize oneself with your neighbours;
 - (vi) never lend electronic access/swipe cards to another person;
 - (vii) refrain from leaving money or valuables in full view when they are not in their room/apartment;
 - (viii) securing bikes to a bike rack using a quality lock such as a U-bolt; and
 - (ix) immediately notify Student One if they notice any suspicious people or behaviour in or around the Accommodation.

- b) Student One can ask non-residents, uninvited visitors or any other person(s) deemed to be unauthorized by Student One, at its absolute discretion, to leave the Accommodation.
- c) Residents are issued with a swipe card for access to their room/apartment and to numerous common areas of the Accommodation. A replacement swipe card can be issued to a resident if lost or damaged upon payment of a card replacement fee.
- d) Residents must not tamper with, or change, a door lock in the Accommodation.
- e) If a resident is locked out of their room/apartment outside business hours, Student One will grant access subject to the resident's identity being established. Other than due to a faulty lock/swipe card, if Student One is required to grant a resident access to their room/apartment due to lock-out, a call out charge of \$5 will be applied to the resident's account to open the apartment/room door. This \$5 will be donated to Charity.
- f) Evacuation maps are posted in various parts of the Accommodation indicating the nearest exit and steps to take to vacate the premises in the event of an emergency. Residents are required to comply with all evacuation procedures and directions.
- g) Residents must attend compulsory fire awareness programs and fire and evacuation drills as directed by Student One from time to time.
- h) The fire brigade, police, ambulance and/or the Student One monitoring services (as applicable) are obligated to respond to any alarm regardless of the cause. Any resident(s) found by Student One in its sole discretion, acting reasonably, to have set off a false fire activation whether purposefully, due to negligence, reckless behaviour, use of a naked flame such as a candle, incense or similar or by distraction or ignorance are responsible for any charges levied by the fire brigade and fire contractor for services and repairs resulting from the false alarm activation. The current charge for a false alarm, as imposed by the Queensland Fire and Emergency Service, for the 2022-23 financial year is **\$1,408.25**
- i) Excessive steam from showers and hot water usage at any time may set off a fire alarm. Residents must always use the bathroom exhaust fans when showering, close the bathroom doors and use the kitchen exhaust fans and range hoods when cooking.

5. Smoking and Illegal Drug Use

- a) The Accommodation is a smoke-free zone, and residents and their guests are prohibited from smoking in the Accommodation. Residents and/or their guests found to be smoking within any part of Student One will be issued a minimum \$330.00 fine for each infringement.
- b) The illegal consumption of drugs in the Accommodation is prohibited.
- c) Without limitation, a breach of Rule 5(a) or (b) above is a serious breach and may, at Student One's discretion, result in the resident(s) being given a notice to leave the Accommodation immediately.

6. Social Gatherings, Events or Parties

- a) Should a resident wish to arrange/plan/provide a "social gathering", "event" or "party" at the Accommodation ("the **Event**"), then prior written approval to hold the Event must be obtained from Student One. An Event application form must be lodged with Student One at least 72 hours prior to the Event. This form is available from Student One administration.
- b) Residents must immediately comply with any direction by Student One in relation to complaints received about an Event, such as reducing the noise levels or ceasing any activity or behaviour which is causing a disturbance to other occupants of the Accommodation and/or neighbours of the Accommodation.
- c) Student One reserves the right to terminate an Event at its discretion.

7. Alcohol Consumption

- a) No large quantities of alcohol are to be brought into any common area within Student One. This includes bottles of spirits, cases of beer or casks of wine. Quantities deemed acceptable include a singular bottle of wine, a six pack of beer or a six pack of pre-mixed drink (375ml).
- b) Large quantities of alcohol found in the common areas will be confiscated and can be collected from management the following day, or they will be disposed of.
- c) Disrespectful behaviour will not be tolerated and may result in residents being issued a Notice to Remedy Breach (form 11) or a Notice to Leave (form 12).

8. Guests

Residents must ensure their guests are aware of these Rules.

9. Access to residents' rooms

- a) Student One must take reasonable steps to ensure residents have quiet enjoyment of their rooms.
- b) Student One must not enter residents' rooms other than as provided under the Act .

10. Animals

It is a significant breach if an animal, other than a working dog, is kept at the premises without Student One approval.